

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JULY 31, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**CLAUDIA GONZALEZ vs. MEYER CORPORATION
Case No. FCS058246**

ORDER AFTER HEARING ON PLAINTIFF'S MOTION FOR FINANCIAL DISCOVERY

Plaintiff CLAUDIA GONZALEZ moves for leave to conduct discovery of Defendant MEYER CORPORATION U.S.'s ("MEYER") financial condition. Plaintiff relevantly alleges causes of action against MEYER for discrimination and harassment in violation of the Fair Employment and Housing Act, based on alleged derogatory comments and conduct from Defendant DIEGO PEREZ ("PEREZ"), Plaintiff's supervisor at MEYER.

The court received supplemental briefing from Plaintiff and from MEYER as authorized at the July 10, 2026 hearing.

The Court has also considered the arguments of counsel regarding the admissibility of Plaintiff's deposition testimony in light of CCP Section 2025.620.

On July 28, 2026, the Parties appeared and presented additional oral arguments on the merits of Plaintiff's motion. The Court has considered those arguments and has again reviewed the exhibits attached to the motions, in particular the deposition testimony of Plaintiff Gonzalez, Defendant Perez, and emails between Plaintiff Gonzalez, Defendant Perez, Ms. Bledsoe, and Mr. Banning. Having considered the arguments and exhibits, the Court adopts its previous tentative ruling. The Court finds, for purposes of this motion, that Plaintiff has established a substantial probability of proving punitive damages against Defendant Meyer. The Court's tentative ruling as set forth below is adopted as the final order of the Court. THE PARTIES ARE TO APPEAR TO

ADDRESS DISCOVERY DEADLINES for the financial information. In addition, the Court orders a protective order.

Legal Standard. Code of Civil Procedure section 3295 states that a plaintiff may not conduct pretrial discovery of a defendant's financial condition for purposes of assessing punitive damages unless that plaintiff first obtains an order permitting discovery from the court. Such an order may only be granted upon motion "supported by appropriate affidavits" such that the court determines that the plaintiff has a substantial probability of prevailing on his claim for related damages.

To prevail on such a motion a plaintiff must demonstrate a substantial probability that he will prevail on his claim for punitive damages at trial; this requires the court to weight the evidence submitted in favor of and in opposition to the motion and find that it is very likely – not simply likely, but very likely – that the plaintiff will prevail on the punitive damages claim at trial. (*Jabro v. Superior Court* (2002) 95 Cal.App.4th 754, 758.) In turn, Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is "proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." "Malice" means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; "oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights; and "fraud" means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code § 3294, subd. (c).) "Despicable" conduct refers to that which is "base, vile, or contemptible" and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

An employer shall only be liable for punitive damages based on its employee's acts where the employer had advance knowledge of the employee's unfitness and employed him with a conscious disregard for the rights and safety of others or authorized or ratified the employee's wrongful conduct. (Civ. Code, § 3294, subd. (b).) A corporate employer can be held liable for punitive damages under those rules if the advance knowledge or authorization or ratification was on the part of an officer, director, or managing agent. (*Ibid.*) Ratification generally occurs where the employer demonstrates an intent to adopt or approve behavior. (*College Hospital, supra*, 8 Cal.4th at p. 726.) Ratification in the corporate context requires actual knowledge of the conduct and its outrageous nature. (*Ibid.*) A plaintiff need not necessarily establish that any particular committee or officer of the corporation acted on a particular date with malice, though; it is enough if the evidence permits a clear and convincing inference that authorized persons within the corporate hierarchy acted despicably. (*Romo v. Ford Motor Co.* (2002) 99 Cal.App.4th 1115, 1140 (*Romo*), disapproved on other grounds in *People v. Ault* (2004) 33 Cal.4th 1250, 1272 at fn. 15.) That is, a plaintiff may satisfy the "managing agent" requirement in the corporate context through evidence, even circumstantial evidence, showing information in the possession of the corporation and the structure of management decision-making that permits an inference that the

information in fact moved upward to a point where corporate policy was formulated. (*Id.* at p. 1141.)

Objections to Evidence. MEYER objects to several pieces of evidence in the Declaration of Chambord Benton-Hayes in Support of Motion.

MEYER's #1-2, 17. Plaintiff cannot use her own interrogatory responses as evidence. (Code Civ. Proc., § 2030.410.) These objections are sustained.

MEYER's #13, 29-32. What Plaintiff told Ms. Luciano is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. These objections are sustained.

MEYER's #14, 42, 44, 46. What Plaintiff told Ms. Calisa is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. These objections are sustained.

MEYER's Supplemental #7. What Ms. Jarrett told Plaintiff is hearsay. While hearsay exceptions might come into play later at trial, there is no hearsay exception at this time. This objection is sustained.

MEYER's Supplemental #1,2,3. Defendant's objections pursuant to CCP Section 2025.620, Civil Code Section 3295, and CCP Section 2015.5 are overruled. Unlike CCP Section 2030.410, there is no express prohibition related to CCP Section 2025.620 prohibiting the use of deposition testimony by the responding party. The court finds that the requirement of "appropriate affidavits" under CCP Section 3295 is sufficiently satisfied by use of sworn deposition testimony.

Likelihood of Proving Punitive Damages Against MEYER. Plaintiff's supplemental declaration of counsel filed July 14, 2026 introduces into evidence Plaintiff's deposition, wherein she testifies that PEREZ made statements including and not limited to the following during the course of her employment with MEYER: "men are always right," "men are the head of the household," "men make the rules." This evidence of repeated harassing statements demonstrates a substantial likelihood that it can be proven at trial that PEREZ engaged in malicious and/or oppressive harassment of Plaintiff based on her sex and/or gender, in turn supporting potentially supporting imposition of punitive damages against PEREZ.

The court recognizes MEYER's argument in supplemental opposition that the standard has not been met. MEYER characterizes PEREZ's comments as isolated incidents. However, a pattern is necessarily formed of incidents with common features. Plaintiff's evidence of PEREZ's harassing comments is substantially likely to support a finding of a pattern of harassment.

Plaintiff's evidence also demonstrates a likelihood of proving at trial that MEYER ratified PEREZ's harassing conduct and so is potentially liable for punitive damages. Plaintiff

notified MEYER of PEREZ's aggressive conduct in a March 4, 2021 email to MEYER's Vice President of Human Resources Jennifer Bledsoe. In a subsequent email on March 9, 2021 to Chris Banning, MEYER's president, Bledsoe admitted and conveyed to Banning awareness that PEREZ's aggressive conduct was directed at his female direct reports, suggesting animus based on sex and/or gender, and that PEREZ's aggressive conduct was driven at least in part by cultural animus. Later that same week Banning increased PEREZ's pay twice, providing evidence of approval of PEREZ's conduct. When MEYER reduced its workforce for the stated reason of cost savings, Plaintiff was the only employee terminated; further, Banning approved the cost savings proposal as it was presented by PEREZ. This evidence further suggests ratification of PEREZ's actions against Plaintiff.

MEYER's argument in opposition speaks to a lack of evidence that MEYER failed to perform any promised investigation of PEREZ and does not address the identified evidence substantially likely to support a finding of ratification.

The court finds that the evidence presented suffices, for purposes of the instant motion, to demonstrate that Plaintiff has a substantial probability of obtaining punitive damages against MEYER at trial based on ratification of PEREZ's harassing conduct.

Conclusion. Plaintiff's motion is granted.

THE PARTIES ARE TO APPEAR to address deadlines for the above financial discovery.

CAPITAL ONE N.A. vs. ARCHIE A. PETERS
Case No. CL25-03911

Motion by Plaintiff to Vacate Dismissal and Enter Judgment Under Terms of the Stipulated Settlement Against Defendant

TENTATIVE RULING

Plaintiff's motion to vacate dismissal and enter judgment is denied without prejudice.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

Defendant filed no responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail, on Defendant, at an address at which personal service of summons and complaint had

been completed approximately six months earlier. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

Plaintiff is also reminded that costs must be claimed post-judgment, per CRC 3.1700.

TROY ANDERSON vs. WARDEN OF CALIFORNIA MEDICAL FACILITY; ET AL.
Case No. CU23-02408

CUEVA's Demurrer

TENTATIVE RULING

Defendant D. CUEVA ("CUEVA," erroneously sued as WARDEN OF CALIFORNIA MEDICAL FACILITY) demurs to Plaintiff TROY ANDERSON's complaint for negligence and intentional tort.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis. Plaintiff's complaint does not state a cause of action against CUEVA. The complaint states that Plaintiff brought some of his concerns to CUEVA on April 22, 2022 and CUEVA agreed with Plaintiff that Plaintiff having to wear a control jumpsuit during emergency medical transports was unreasonable; CUEVA then directed his subordinates to enforce his orders. The complaint also states that CUEVA would approve Plaintiff's phone calls to a legal help center but another defendant, B. EBERT, would interfere and delay or deny the calls. There is no cognizable action stated against CUEVA in these allegations.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.)

Plaintiff filed opposition to the demurrer on April 17, 2026. The opposition papers include a proposed amended complaint. However, the proposed amended complaint is substantially a restatement of the operative complaint and so does not demonstrate a reasonable possibility that amendment would cure the lack of a cognizable action against CUEVA in the operative complaint. Where the proposed amended complaint adds new material it adds only legal argument and allegations of general inequality in the prison system that do not implicate CUEVA specifically.

Conclusion. CUEVA's demurrer is sustained without leave to amend.

JAVON CHRISTINA ROSS vs. RONALD DEAN SCRIVNER; ET AL.
Case No. CU24-06538

Defendant's Motion for Sanctions for Spoliation of Evidence

TENTATIVE RULING

Defendant RONALD DEAN SCRIVNER moves for issue, evidentiary, and monetary sanctions against Plaintiff JAVON CHRISTINA ROSS. Defendant contends that Plaintiff intentionally underwent sacroiliac joint surgery shortly after Defendant served her with a demand for an independent medical examination and thereby deprived him of evidence of the condition of her sacroiliac joint following the motor vehicle collision underlying Plaintiff's complaint.

Code of Civil Procedure section 2023.030 permits a court to impose various sanctions on a party that misuses the discovery process. Spoliation of evidence is the destruction or significant alteration of evidence or the failure to preserve evidence for another's use in future litigation. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.) Spoliation is an abuse of the discovery process open to a wide range of sanctions, including monetary, evidentiary, issue, and terminating sanctions. (*Ibid.*) Egregious spoliation can warrant terminating sanctions even absent prior disobedience of court orders. (*Ibid.*) However, as these sanctions are meant to remedy misconduct rather than punish offenders, sanctions imposed must not place the requesting party in a better place than he would be had he obtained the spoiled evidence and should be proportionate to the offending party's misconduct. (*Ibid.*) A party moving for sanctions based on spoliation of evidence must make a prima facie showing that evidence was spoiled and the spoliation has a substantial probability of damaging the movant's ability to prove his claim or defense. (*Id.* at p. 1227.) The party accused of spoliation must then disprove prejudice to the movant. (*Ibid.*)

Defendant took Plaintiff's deposition on August 27, 2025 and at that time learned that Plaintiff had been recommended sacroiliac joint surgery. (Declaration of Caitlyn M. Harris in Support of Motion at ¶ 4, Exhibit A.) Plaintiff stated at the deposition that she had not scheduled a date for the surgery but had an appointment on August 28, 2025 at which scheduling would be arranged. (*Ibid.* [deposition transcript at 81:17-21, 108:7-

21].) Defendant served a demand for an independent medical examination of Plaintiff on September 4, 2025, setting the examination for October 17, 2025. (*Id.* at ¶ 7, Exhibit D.) Plaintiff showed up to the examination on October 17, 2025 having recently undergone sacroiliac joint surgery. (*Id.* at ¶ 8.)

The Court finds that Plaintiff has misused the discovery process withing the meaning of CCP Section 2023.010. Section 2030.010 is not limited to the situations listed in the statute itself. “Misuses of the discovery process include, but are not limited to, the following [,,].” *CCP Section 2023.010*.

On August 28, 2025, Defendant unambiguously demanded that Plaintiff promptly notify Defendant of any surgery date. (Declaration of Caitlyn M. Harris in Support of Motion at ¶ 5, Exhibit B.) In Plaintiff’s response email dated September 2, 2025, Plaintiff did not respond one way or the other as to this particular demand for notification. (Declaration of Caitlyn M. Harris in Support of Motion at ¶ 6, Exhibit C.) The Court finds that Defendant’s demand was reasonable and would have allowed Defendant to seek further court orders, if needed, upon learning of a surgery date scheduled to occur before the IME date. The Court finds that Defendant has been prejudiced in that they were prevented from completing an IME exam that would allow them to fully investigate the extent of Plaintiff’s injury, pre-surgery.

The Court finds that Plaintiff did not act with substantial justification. Similarly, the Court finds that there are no circumstances which make the imposition of sanctions unjust.

Defendant’s motion for monetary sanctions is granted against Plaintiff / Plaintiff’s Counsel in the amount of \$2460.00, due and payable to Defendant / Defense Counsel within 30 days of the date of service of this order. The Court denies Defendant’s request for evidentiary or issue sanctions.

Plaintiff’s request for CACI instruction 204 is denied without prejudice as it is premature. The Court will entertain Plaintiff’s request for this instruction at the time of trial and based upon the evidence that has been admitted at trial.

JAVON CHRISTINA ROSS vs. RONALD DEAN SCRIVNER; ET AL.
Case No. CU24-06538

Defendant’s Motion for Compel Compliance with Deposition Subpoena for Production of Business Records

TENTATIVE RULING

Defendant RONALD DEAN SCRIVNER moves to compel The Choyce Law Firm to comply with his deposition subpoena for production of business records served September 16, 2025. The subpoena seeks all non-privileged records pertaining to Plaintiff JAVON CHRISTINA ROSS, including correspondence with doctors, experts,

insurance companies, attorneys other than The Choyce Law Firm, courts, and adverse parties, all medical records, including psychological and emotional health records, all evidence of loss of income, including wage statements and tax documents, discovery documents, pleading documents, settlement documents, and more. In short Defendant asks for The Choyce Law Firm's entire file concerning Plaintiff, whom Defendant states was represented by The Choyce Law Firm in a previous motor vehicle collision action.

The subpoena is overbroad. Defendant's stated need to discover information pertaining to Plaintiff's cervical strain injury and other alleged injuries from the collision underlying the present action does not explain why Defendant needs The Choyce Law Firm's entire litigation file on Plaintiff from the previous collision action or indeed why Defendant is seeking medical record information from Plaintiff's prior counsel instead of a health care provider.

Defendant's motion is denied.

DGDG 18, LLC vs. EBONAE WEBB-POSEY
Case No. CU25-08730

Motion to Strike Cross-Complaint

TENTATIVE RULING

C.C.P. §436(b) authorizes the court on motion to "Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court."

A cross-complaint may be filed by a party named as a defendant by a complaint (or as a cross-defendant in a cross-complaint) filed in that same action. C.C.P. §428.10.

EBONAE WEBB-POSEY ("WEBB-POSEY") filed a cross-complaint in an action in which no complaint was ever filed against her.

That alone would justify the court's striking of the cross-complaint, but there is more.

Absent grounds for revoking of any contract, an agreement in writing to submit disputes to arbitration is enforceable. C.C.P. §1281.

WEBB-POSEY signed the written purchase agreement, and in fact was the party who initiated arbitration of her claims, which later grew to include the cross-claims of DGDG against her.

Any pleading filed after the parties agreed to arbitration, and submitted to arbitration, is improper.

When a claim is submitted to arbitration, and an arbitration award is issued, a party can either petition the court to confirm the award as a judgment under C.C.P. §1285, or petition the court to vacate the award under C.C.P. §1286.2.

Thus, for multiple reasons, WEBB-POSEY's filing of a cross-complaint is improper, and is hereby stricken in its entirety, without leave to amend.

Parties are to appear for the Case Management Conference set for the same date and time as hearing on this motion. The court intends to set a hearing date for the cross-petitions filed as to confirmation or vacating of the arbitration award.

HORACE FLOYD vs. ERIC TAGGESELL; ET AL.
Case No. CU25-10956

Plaintiff's Motion to Sever Cross-Complaint

TENTATIVE RULING

THE PARTIES ARE TO APPEAR AS SET FORTH BELOW.

Plaintiff HORACE FLOYD moves to sever the cross-complaint of Defendants and Cross-Complainants ERIC TAGGESELL and RCA CALIFORNIA LLC from his complaint in this action. Defendants seek contribution and indemnity from Cross-Defendant ROMERO'S LANDSCAPING regarding Plaintiff's alleged harms from falling into an uncovered trench on Defendants' property.

The court, in furtherance of convenience or to avoid prejudice, may order separate trial of causes of action, including those asserted in a cross-complaint. (Code Civ. Proc., § 1048, subd. (b).) A person against whom a complaint is brought may file a cross-complaint asserting any causes of action that person possesses against the complainant and/or any causes of action that person possesses against other parties that arise out of the same transactions or occurrences as the complaint. (Code Civ. Proc., § 428.10.)

Defendants' indemnity action against ROMERO'S arises out of the same transactions or occurrences as Plaintiff's complaint. The court does not find that severance would further convenience or avoid prejudice. Simultaneous trial of the actions promotes judicial economy as the facts determining Defendants' liability, if any, to Plaintiff will bear on ROMERO'S liability, if any, to Defendants. The court recognizes Plaintiff's statements that he is severely ill and again suggests that Plaintiff refile his motion for trial preference when appropriate supporting medical evidence is available.

Plaintiff's motion for severance is denied.

ESTHER N. KIMANI vs. CORNELIUS J. EVANS
Case No. CU25-11171

Petitioner's Motion for Attorneys' Fees

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is to award attorney's fees in the amount of \$2500.00.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

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